BAP No. NV-25-0123

Bankr. No. 25-10123-abc (Bankr. D. Nev.)

UNITED STATES BANKRUPTCY APPELLATE PANEL OF THE NINTH CIRCUIT

JANE EXAMPLE,
Appellant,

v.

ACME LENDING, LLC,
Appellee.

On Appeal from the United States Bankruptcy Court for the District of Nevada,
Honorable Sample Judge, Presiding

APPELLANT'S REPLY BRIEF

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Argument

I. The Appellee Does Not Answer the Consideration Argument

The appellee's brief says the Bankruptcy Court found that the consideration was less than reasonably equivalent value. The court made no such finding. The appellee's response rests on the appraiser's range, but the appellee does not identify where the court selected a figure from that range. 11 U.S.C. § 548 requires that finding as an element, and its absence is not cured by the appraisal alone.

The appellee also does not dispute that the lien was the debtor's own obligation. Once the lien is counted, the consideration is within the range the appraiser gave for a sale in the ordinary course. (ER 65-66.) The appellee's answer to that point is that the lien was secured, which does not respond to the argument that it was value.

II. The Solvency Argument Does Not Depend on the Schedules

The appellee relies on the debtor's schedules to show insolvency. The schedules are the debtor's own statements, prepared before the adversary proceeding and before the trustee's witness identified the omitted receivables. (ER 33-35.) They do not establish the value of the receivables, and the appellee does not argue that they do. The finding therefore still lacks support in the record the court had.

III. The Section 544 Discussion Is Not Harmless

The appellee says any error in the section 544 discussion is harmless. But the judgment is entered for the estate on the avoidance claim, and the court's reasoning on the claim cannot be separated from its discussion of the state-law period. The appellee does not identify a separate ground in the decision that supports the judgment independently.

The appellee's notice argument also does not answer the point. The pretrial order did not identify the state-law period, and the appellant had no reason to brief it. Law v. Siegel cautions against relying on theories that go beyond the statutory scheme the parties litigated. 571 U.S. 415, 421 (2014).

Conclusion

For these reasons, and those in the opening brief, the judgment should be reversed or vacated and the matter remanded.

/s/ Pat Sample
Attorney for Appellant Jane Example
November 18, 2026

CERTIFICATE OF COMPLIANCE

This brief complies with the type-volume limitation of Fed. R. Bankr. P. 8015(a)(7) because it contains 344 words, excluding the parts of the brief exempted by Fed. R. Bankr. P. 8015(g).

This brief complies with the typeface and type-style requirements of Fed. R. Bankr. P. 8015(a)(5) and (6) because it has been prepared in a proportionally spaced typeface, 14-point EB Garamond, with plain roman type and italics for emphasis.

/s/ Pat Sample

CERTIFICATE OF SERVICE

I hereby certify that on November 18, 2026, I electronically filed the foregoing document with the Clerk of the Court for the Bankruptcy Appellate Panel for the Ninth Circuit by using the CM/ECF system.

I certify that all parties of record to this appeal either are registered CM/ECF users, or have registered for electronic notice, or have consented in writing to electronic service, and that service will be accomplished through the CM/ECF system.

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